



File No.: EXP202306259

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by ANIVERSALIA NETWORKS, S.L. (hereinafter, ANIVERSALIA) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 29/11/2023, and based on the following

FACTS

FIRST: On 29/11/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202306259, by virtue of which a fine of €2,000 was imposed on ANIVERSALIA NETWORKS, S.L. for the violation of the provisions of Article 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter GDPR), an infringement classified in Article 83.5.b) and qualified as very serious in Article 72.1.h) of Organic Law 3/2018, of 5 December, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD).

This resolution, which was notified to ANIVERSALIA on 11/12/2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of the LOPDGDD, and subsidiarily in Law 39/2015, of 1 October, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00688/2022, the following was recorded:

First: On 14/04/2021, the content of the Privacy Policy of the website <https://www.aniversalia.com> is as follows:

"1. LOPD

In compliance with the provisions of Organic Law 15/99, of 13 December, on the Protection of Personal Data, we inform you that the data you provide us by completing this form will become part of a file owned by ANIVERSALIA NETWORKS S.L. for the management of USERS and in accordance with our privacy policy. We also inform you that you can exercise the rights of access, rectification, cancellation, and opposition at the headquarters of ANIVERSALIA NETWORKS S.L. Calle Alloza, 109 -, 12001 Castellón, Spain.

2. ANIVERSALIA Privacy Statement

At ANIVERSALIA, we are committed to protecting your privacy. You can visit most pages of our site without providing us with any information about you. However, sometimes we need information to provide the requested services, and this privacy statement explains the collection of data and its use in those situations. This privacy statement only applies to ANIVERSALIA.com; it does not apply to other products, services, or sites of ANIVERSALIA available online or offline. Read the complete privacy statement of ANIVERSALIA.com. This website is directed to individuals over 18 years of age.

3. Personal Information

a) Collection of personal information

When we need information that personally identifies you (personal information) or that allows us to contact you, we will ask you for it. The personal information collected by ANIVERSALIA.com is often limited to your email address, language, and country or location, although it may include other information when

necessary to provide the requested service.

For example: if you choose a service or transaction that requires a payment, such as making a purchase, we will ask you for personal information necessary for billing and shipping, such as: name, address, phone number, and credit card number.

When you purchase a product, we may ask you to register your purchase electronically. We keep this information along with the information you have already provided during previous visits to our website.

ANIVERSALIA also collects certain information about the hardware and software of your device. This information may include: IP address, browser type, operating system, domain name, access times, and referring website addresses. This information is used for the operation of the service, to maintain its quality, and to provide general statistics about the use of ANIVERSALIA.com.

ANIVERSALIA also collects information about the pages that our USERS visit on ANIVERSALIA.com. This site visit data is identified with a unique identification number and is never linked to personal information unless a user gives their consent as described below.

b) Use of personal information

Personal information is used for the following purposes:

- Ensure that the site meets your needs.
- Provide services, such as USER management, newsletters, events, information, or services that you have requested or purchased.
- Help us create and publish content that is relevant to you.
- Alert you about product and service updates, special offers, updated information, and other new services from ANIVERSALIA.com if you request it.
- Allow you to access limited entry areas of our site as necessary.

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ANIVERSALIA may disclose your personal information if required to do so by law or if it believes in good faith that such action is necessary to: (a) comply with the law or legal process related to ANIVERSALIA or the site; (b) protect and defend the property rights of ANIVERSALIA and its family of websites; or (c) act in urgent circumstances to protect the personal safety of ANIVERSALIA employees, users of ANIVERSALIA products or services, or members of the public.

Information may be stored and processed in any other country where ANIVERSALIA or its affiliates, partners, or agents have facilities. By using this site, you consent to such transfer of information outside your country. ANIVERSALIA complies with the framework of the LOPD and the LSSI, as well as with countries that have legislation similar to that of Spain.

c) Control of personal information

When you register or provide us with personal information, ANIVERSALIA does not share that information with third parties without your permission, except for the limited exceptions already indicated. It will only be used for the purposes mentioned above.

ANIVERSALIA may periodically send emails with information about security issues or technical service for a requested product or service, or as confirmation of a product or service request. You cannot unsubscribe from these messages as they are considered an essential part of the chosen service.

Second: On 15/09/2022, the content of the Privacy Policy of the website <https://www.aniversalia.com> is identical to that indicated in the previous section.

Third: On 10/05/2023, the content of the Privacy Policy of the website <https://www.aniversalia.com> is as follows:

“1. LOPD

In compliance with the provisions of REGULATION (EU) 2016/679 OF THE EUROPEAN

PARLIAMENT AND OF THE COUNCIL of April 27, 2016, we inform you that the data you provide us by completing this form will become part of a file owned by ANIVERSALIA NETWORKS S.L. for the management of USERS and in accordance with our privacy policy. We also inform you that you can exercise your rights of access, rectification, cancellation, and opposition, as well as the other rights provided for in the aforementioned regulation, for which you must contact the headquarters of ANIVERSALIA NETWORKS S.L. Calle Alloza, 109 -, 12001 Castellón Spain. Attaching a photocopy of the identity document or by email to datos@aniversalia.com.

2. Privacy Statement of ANIVERSALIA

At ANIVERSALIA, we are committed to protecting your privacy. You can visit most pages of our site without providing us with any information about yourself. However, sometimes we need information to provide the requested services, and this privacy statement explains the collection of data and its use in those situations. This privacy statement only applies to ANIVERSALIA.com; it does not apply to other products, services, or sites of ANIVERSALIA available online or offline. Read the complete privacy statement of ANIVERSALIA.com. This website is directed to individuals over 18 years of age.

3. Personal Information

a) Collection of personal information

When we need information that personally identifies you (personal information) or that allows us to contact you, we will ask you for it. The personal information collected by ANIVERSALIA.com is often limited to your email address, language, and country or location, although it may include other information when necessary to provide the requested service.

For example: if you choose a service or transaction that requires payment, such as making a purchase, we will ask you for personal information necessary for billing and shipping, such as: name, address, phone number, and credit card number.

When you purchase a product, we may ask you to register your purchase electronically. We keep this information along with the information you have already provided during previous visits to our website. ANIVERSALIA also collects certain information about the hardware and software of your device. This information may include: IP address, browser type, operating system, domain name, access times, and referring website addresses. This information is used for the operation of the service, to maintain its quality, and to provide general statistics regarding the use of ANIVERSALIA.com.

ANIVERSALIA also collects information about the pages our USERS visit on ANIVERSALIA.com.

These site visit data are identified with a unique identification number and are never linked to personal information unless a user gives their consent as described below.

b) Use of personal information

Personal information is used for the following purposes:

- Ensure that the site meets your needs.
- Provide services, such as USER management, newsletters, events, information, or services that you have requested or purchased.
- Help us create and publish content that is relevant to you.
- Alert you about product and service updates, special offers, updated information, and other new services from ANIVERSALIA.com if you request it.
- Allow you access to limited entry areas of our site as necessary.

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ANIVERSALIA may disclose your personal information if required to do so by law or if it believes in good faith that such action is necessary to: (a) comply with the law or legal mandates related to ANIVERSALIA or the site; (b) protect and defend the property rights of ANIVERSALIA and its family of websites; or (c) act in urgent circumstances to protect the personal safety of ANIVERSALIA employees, users of ANIVERSALIA products or services, or members of the public.

Information may be stored and processed in any other country where ANIVERSALIA or its affiliates, partners, or agents have facilities. By using this site, you consent to such transfer of information

outside your country. ANIVERSALIA is subject to the framework of the LOPD and the LSSI, as well as to countries that have legislation similar to that of Spain.

c) Control of personal information

When you register or provide us with personal information, ANIVERSALIA does not share that information with third parties without your permission, except for the limited exceptions already indicated. It will only be used for the purposes mentioned above.

ANIVERSALIA may periodically send emails with information about security issues or technical service for a requested product or service, or as confirmation of a request for a product or service. You cannot unsubscribe from these messages as they are considered an essential part of the chosen service.

d) Access to personal information

You will be provided with means to ensure that your personal information is accurate and up to date.

e) Security of personal information

ANIVERSALIA is committed to protecting the security of your personal information. We use various technologies and security procedures to protect your personal information from unauthorized access, use, or disclosure. For example, we store the personal information provided on servers with limited access located in controlled facilities. When we transmit important information (such as credit card numbers) over the Internet, we protect it by encrypting it with protocols such as Secure Socket Layer (SSL).

We inform you that ANIVERSALIA may provide personal information to the competent authorities when required to do so, in accordance with current legislation.

Fourth: Identified as responsible for the website www.aniversalia.com is ANIVERSALIA NETWORKS, S.L., with NIF

Fifth: On 24/07/2023, the representative entity of ANIVERSALIA received an email at the address ***EMAIL.1, with the following content:

"Hello A.A.A.,
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What has been done is to deactivate the website. It can be seen at: <http://aniversalia.com/>. User data no longer appears.

If you search on Google, they still appear, but this will be removed as soon as Google re-indexes aniversalia.com and does not find those pages.

If you enter the search engine (...) and click on the links, you will see that it gives an error.

I'm not quite sure how you want to communicate this to the users who request cancellation.

Regards. B.B.B."

Sixth: Currently, it is proven that when accessing the website aniversalia.com, the following message appears:

"Aniversalia says goodbye! We regret to inform you that the Aniversalia website has closed. We thank all our users for their support and loyalty over the years. If you have any questions or concerns, you can find us at the following location:

Address: Ronda Mijares, 11, C.P.: 12001, Castellón, Spain"

THIRD: On 09/01/2024, ANIVERSALIA submitted, to this Spanish Agency for Data Protection, a request for reconsideration in which it stated that it had not received any request for cancellation of personal data from the complainant, having processed the cancellation as a user in its system when it became aware of PS/00688/2022.

It also indicated that the Privacy Policy of its website did comply with current regulations, except for the legislative mention of the LOPD, an aspect that was corrected. Therefore, it did comply with the duty to inform provided for in Article 13 of the GDPR, so that "we would be at most facing a minor infringement, which according to Article 72.1h LOPDGDD, should be classified as minor, and in turn prescribed and if not considered prescribed, based on the principle of proportionality, its amount

should be revised downwards, and being a company that has a net turnover of (...)€ and following the principle of proportionality established in the imposition of sanctions.”

Along with the request for reconsideration, it provides as Document No. 1 “Notification receipt AEPD” and as Document No. 2 “PyG 2022 Aniversalia Networks SL.”

LEGAL GROUNDS

I

Competence and procedure

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

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Response to the allegations presented

In relation to the statements made by the appellant, a response is provided below.

The appellant claims not to have received any request for the cancellation of personal data from the claimant, but that they proceeded to deactivate the user once they became aware of PS/00688/2022. They also state that they have adjusted the Privacy Policy of the website to comply with current regulations, modifying the legislative reference from the LOPD; without prejudice to the fact that the content does comply with the current regulations.

In this regard, this Agency wishes to point out that these statements were already analyzed and dismissed in the Legal Grounds II of the contested Resolution, as transcribed below:

“[...]”

In this regard, this Agency wishes to remind ANIVERSALIA that the facts reported by the claimant relate to the lack of information when exercising their rights regarding personal data protection. Therefore, they could not have received any request for deletion from the claimant as they did not know to whom or how to proceed.

[...]”

In this regard, this Agency wishes to point out that ANIVERSALIA, as the data controller, is obliged to provide its users with all the information listed in Article 13 of the GDPR. While it is true that they have replaced the reference to the LOPD in the Privacy Policy with that of the GDPR, the content does not detail point by point the issues that comprise the duty of information of the aforementioned provision. The information contained in the section “Legal Notice and Privacy Policy” of the website in question is quite vague, as it is not concise regarding the issues that each heading should cover. Specifically, it does not provide detailed information about the identity of the data controller, nor about the recipients of the data collected in the event of transfer or communication. Furthermore, it does not mention either the retention period of the collected data or the legal basis that legitimizes such processing.”

Therefore, this allegation is dismissed.

Furthermore, the appellant alleges that, should it be considered that the measures adopted are insufficient to comply with the duty of information set forth in Article 13 of the GDPR, “we would at most be facing a minor infringement, which according to Article 72.1h of the LOPDGDD, should be classified as minor, and in turn, prescribed.” In the event that it is not considered prescribed, the appellant requests a reduction of the fine. They provide Document No. 2 “PyG 2022 Aniversalia Networks SL”.

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In this regard, this Agency wishes to remind that Article 72.1.h) of the LOPDGDD qualifies as a very serious infringement for the purposes of prescription, the “omission of the duty to inform the affected

party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.” And that, in any case, it is Article 74.a) of the aforementioned regulation that considers that the infringement of the principle of transparency of information or the right to information of the affected party for failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679 is a minor infringement for the purposes of prescription.

In the present case, while it is true that the Privacy Policy of the website, <https://www.aniversalia.com>, never fully complied with the current regulations, it is also true that it had certain information available to the interested parties regarding personal data protection. Thus, qualifying the infringement of Article 13 of the GDPR committed by the appellant as minor for the purposes of prescription would be correct, thus prescribing after one year.

However, since the sanctioning procedure was initiated in March 2023 and during its processing the instructor verified on 10/05/2023 that the Privacy Policy of the aforementioned website remained incomplete, the infringement had not prescribed.

Regarding the reduction of the amount of the administrative fine, this Agency wishes to point out that, as already indicated, the infringement is only minor for the purposes of prescription, not for determining the amount of the administrative fine. Both the classification of sanctions and their graduation are determined in the GDPR, specifically in Article 83 of the aforementioned regulation.

In this case, the provisions of paragraph 5 of Article 83 of the GDPR apply, which states: “5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) (...)

b) the rights of the data subjects under Articles 12 to 22; (...)”

Thus, the amount of €2,000 imposed on the appellant in the contested Resolution was set at its lowest range.

Therefore, this allegation is dismissed.

III

Late Resolution

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Due to operational reasons of the administrative body, which are not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nonetheless, despite the time that has elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

IV

Conclusion

Consequently, in the present appeal for reconsideration, the appealing party has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ANIVERSALIA NETWORKS, S.L. against the resolution of this Spanish Agency for Data Protection issued on 29/11/2023, in file EXP202306259.

SECOND: TO NOTIFY this resolution to ANIVERSALIA NETWORKS, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be paid once this resolution is notified, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

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